

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

SAMSUNG ELECTRONICS AMERICA, INC., *Complainant*

v.

HMM CO., LTD. F/K/A HYUNDAI MERCHANT MARINE CO.,
LTD., *Respondent*.

DOCKET NO. 24-23

Served: January 22, 2026

ORDER OF: Alex M. CHINTELLA, *Administrative Law Judge*.

ORDER SETTING DISCOVERY CONFERENCE

On January 16, 2026, Respondent filed a letter motion describing a discovery dispute and requesting a status conference. Dkt. 43. According to Respondent, Complainant has refused to fully respond to interrogatories seeking specific information about the causes of alleged delays to shipments identified in a spreadsheet Complainant produced in discovery. In addition, Complainant emailed me on January 18, 2026, objecting to Respondent's letter motion and similarly seeking a conference as a result of Respondent's alleged failure to fully respond to discovery.

The parties are hereby **ORDERED** to appear for a discovery conference pursuant to Commission Rule 141(i)(1) on **Thursday, January 29, 2026, at 10:00 AM**. The conference will be held by videoconference – counsel will receive a link from judges@fmc.gov. The parties should be prepared to discuss the following topics: the specific information that is missing from the opposing party's production; the extent to which each party has searched for this information and whether it has found such information; the extent to which any missing information might be in the possession of third parties and the identity of those parties; the extent to which such information may have already been produced and where it is located; and the specific obstacles to producing the information. Counsel should also be prepared to discuss the concerns raised in the January 16, 2026 joint status report. Dkt. 42.

In my Initial Order [Dkt. 9], I instructed the parties to alert me in the event of an unresolved discovery dispute, prior to filing a motion to compel, so that I may promptly schedule a status conference for the purpose of understanding the parameters of the dispute and, if possible, either resolving it or narrowing it for the purpose of minimizing the burden of any motion to compel that might be necessary. This instruction is not an invitation to file letter

motions, such as the one Respondent filed on January 16, 2026. Letter motions are not permitted and, in the future, any such filings may be rejected by the Secretary.

SO ORDERED.

ALEX
CHINTELLA

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Alex M. Chintella
Administrative Law Judge